



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND SOUTHWEST
750 PACIFIC HIGHWAY
SAN DIEGO CA 92132-5190

IN REPLY REFER TO
N6247321D3602, N6247322F4361
J&A No. 25-17-2

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

Department of the Navy, Naval Facilities Engineering Systems Command Southwest (NAVFAC SW), Facilities Engineering and Acquisition Division (FEAD) Naval Base San Diego, California.

2. Description of the Action Being Approved:

Request approval of an out of scope contract action to continue performance of the current porta-potty service contract N62473-21-D-3602 Task Order N6247322F4361. The task order is in its final option period, with a contract completion date of March 31, 2025. This contract action will extend performance on a sole source basis to for services at Naval Base San Diego and Naval Base Point Loma in San Diego, CA.

In accordance with the Navy Marine Corps Acquisition Regulation Supplement 5206.303-1(S-90(a), an approved Request for Bridge Contract has been executed.

3. Description of Supplies/Services:

This task order provides labor, supervision, management, equipment, and material to perform porta potty services under the technical annex 1503030 – Integrated Solid Waste Management. This task order supports a variety of customers in the NAVFAC SW area of responsibility (AOR).

The bridge contract will be an out of scope modification to extend the current task order for a seven month base period and five (5) one-month option periods. The anticipated cost is \$271,681.13, to be funded with Fiscal Year 2025 & Fiscal Year 2026 Operations & Maintenance, Navy funds.

PERIOD	PERIOD OF PERFORMANCE	FFP - Recurring	IDIQ Non-Recurring	Total
Bridge Base Period	04/01/2025 - 10/31/2025			
Bridge Option Period One	11/01/2025 – 11/30/2025			
Bridge Option Period Two	12/01/2025 – 12/31/2025			
Bridge Option Period Three	01/01/2026 – 01/31/2026			
Bridge Option Period Four	02/01/2026 – 02/28/2026			
Bridge Option Period Five	03/01/2026 – 03/31/2026			
	TOTAL			\$271,681.13

4. Statutory Authority Permitting Other Than Full and Open Competition:

The statutory authority permitting other than full and open competition is 10 U.S.C. Section 3204(a)(2), as implemented by Federal Acquisition Regulation (FAR) 6.302-2. FAR 6.302-2, unusual and compelling

urgency, which permits contracting without providing for full and open competition in situations where 1) an unusual and compelling urgency precludes full and open competition, and 2) delay in award of a contract would result in serious injury, financial or other, to the Government.

5. Rationale Justifying Use of Cited Statutory Authority:

The current porta-potty contract N62473-21-D-3602 Task Order N6247322F4361 expires on March 31, 2025. The task order was awarded with a one year base period, and two (2) one-year option periods for a total of thirty-six months.

After award of task order N6247322F4361, NAVFAC Southwest determined a base operations service contract (BOSC) should be implemented for Naval Base San Diego. The services of the current task order are within the scope of the new BOSC. The initial planned BOSC award was February 2025. However, due to unforeseen delays, the revised BOSC award is now July 2025. Sufficient time does not exist for a follow-on contract to be awarded. A delay in awarding a bridge contract would result in serious injury to Naval Base San Diego and its AOR as a gap in the required services would adversely affect the installations, piers, customers, and its residents.

In order to continue receiving the required services, it is necessary to extend the incumbent's contract for a period of seven months with a base period and possible five (5) one-month option periods under a bridge contract with unusual and compelling urgency to prevent a gap in service and ensure continuity of the required services until the pending BOSC is awarded and implemented. The incumbent, _____ is successfully performing the current task order and continues to receive successful monthly performance assessment summaries. They also have the accesses required for the bases. _____ is presently on-site and has the resources, equipment, and familiarity with requirements to continue the services without interruption. Due to the timeline of the ending task order and the anticipated start date of the incoming BOSC, it is not possible for new contract to be awarded to perform the support services.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable:

No market research was conducted to identify additional offers because it is not practicable for any other source to provide the required services. Further, the follow-on contract for this requirement will be awarded using competitive procedures. The planned contract action covered by this J&A meets an exception to the synopsis requirement in accordance with FAR 5.202(a)(2). The approved J&A will be released in accordance with FAR 6.305(b).

7. Determination of Fair and Reasonable Cost:

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this justification and approval (J&A) will be fair and reasonable.

8. Actions taken to Remove Barriers to Future Competition:

This is a one-time bridge contract modification to extend the current task order for a seven-month base period, and five (5) one-month option periods. NAVFAC Southwest is pursuing a competitive procurement to award a BOSC to obtain the required services. No barriers to promote future competition are anticipated.

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TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance, which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical & Requirements Cognizance:

Supervisory FSCM
NAVFAC SW

Date

LEGAL SUFFICIENCY REVIEW

I have determined this justification is legally sufficient.

Associate Counsel
NAVFAC SW

Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

Supervisory Contracting Officer
NAVFAC SW

Date